



CHAPTER 64

An Act to amend the Pensions (Governors of Dominions, &c.) Acts, 1911 to 1947. [2nd August, 1956]

BE it enacted by the Queen's Most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) A pension may be granted under the Pensions (Governors of Dominions, &c.) Act, 1911 (in this Act referred to as the "principal Act") to a person who has served as a Governor and who immediately before his appointment as a Governor was employed in service in the permanent Civil Service of the State, notwithstanding that he has not completed three years' service as a Governor (the period required by section one of the Pensions (Governors of Dominions, &c.) Act, 1936), if the other conditions for the grant of such a pension are satisfied, and, in particular, the period of his service as a Governor and the period of his service in the permanent Civil Service of the State together amount to not less than ten years.

(2) In this Act the expression "service in the permanent Civil Service of the State" means service which is either pensionable overseas service (as defined in section sixteen of this Act) or service in respect of which a pension may be granted under the Superannuation Acts.

2. The age at which a pension may be granted under the principal Act shall be fifty instead of fifty-five years, and accordingly the word "fifty" shall be substituted for the words "fifty-five" in paragraph (a) of subsection (1) of section one of that Act, in subsection (1) of section nine of that Act (in both places where those words occur) and in subsection (2) of section one of the Pensions (Governors of Dominions, &c.) Act, 1947.

New method of calculating amount of Governor's pension.

3.—(1) The following provisions of this section shall replace the rules set out in section two of the principal Act for calculating the yearly amount of a pension granted under that Act.

(2) In the case of a pension granted to a person who, immediately before his appointment as a Governor, was serving in pensionable overseas service, the said amount shall be calculated—

(a) by taking for every completed month of his service in pensionable overseas service or as a Governor one six-hundredth of the average yearly amount of his final salary; and

(b) by deducting from the total amount ascertained under the foregoing paragraph the yearly amount of any pension granted to him in respect of any pensionable overseas service;

except that where the said amount will be greater if calculated in accordance with the next following subsection it shall be so calculated.

(3) In the case of a pension granted to any other person the said amount shall be calculated by taking for every completed month of service as a Governor one six-hundredth of the said average yearly amount.

Increase of maximum amount of Governor's pension.

4.—(1) Subsection (1) of section four of the principal Act (which, as amended by section three of the Pensions (Governors of Dominions, &c.) Act, 1947, specifies two thousand three hundred pounds as the maximum yearly amount of a pension under that Act) and subsection (2) of that section (which, as so amended, similarly restricts the right to such a pension of persons in receipt of other pensions earned in the service of the Crown) shall have effect as if for each reference therein to two thousand three hundred pounds there were substituted a reference to whichever of the following is the less, that is to say,—

(a) three thousand pounds or such other sum as the Treasury may by order specify; or

(b) two-thirds of the yearly amount of the highest salary which the person entitled to receive the pension has at any time received in respect of his service in the permanent Civil Service of the State or as a Governor.

(2) The reference in the said subsection (2) to service of the Crown shall be construed as including all pensionable overseas service.

Power to commute Governor's pension.

5. In granting a pension under the principal Act to any person the Secretary of State may, on the application of that person and with the approval of the Treasury, commute by the payment

of a capital sum calculated in such manner as the Treasury may by order prescribe, part of the pension not exceeding one-fourth of the yearly amount which that person might have received but for the commutation.

6.—(1) The Treasury may make rules for securing that, in such circumstances and subject to such conditions as to proof of good health and other matters as may be specified in the rules,—

Allocation
of part of
Governor's
pension to
spouse or
dependant.

(a) a Governor shall be allowed to surrender, as from the date of his retirement, and

(b) a retired Governor under the age of seventy who has married since his retirement shall be allowed to surrender, as from the date of his marriage,

in return for the benefits of the rules, such part of any pension granted or to be granted to him under the principal Act as, subject to the next following subsection, may be specified in the rules, and for enabling the Treasury to grant either to his spouse, or (unless the surrender was made under paragraph (b) of this subsection) to a dependant, a pension of such value as, according to tables to be prepared from time to time by the Government Actuary, is actuarially equivalent, at the date as from which the said part is surrendered, to the value of that part.

(2) The part of a pension surrendered under the foregoing subsection (whether by virtue of paragraph (a) or paragraph (b) or both) shall not exceed one-third or, where part of the pension is commuted under the last foregoing section, one-third of the remainder.

(3) Any pension under this section for the benefit of a dependant (not being the spouse) of a retired Governor shall be payable in respect of the period, if any, for which the dependant survives him, and any such pension for the benefit of the spouse shall, according as the Governor may, in conformity with the rules under this section, elect, be payable either—

(a) in respect of the period, if any, for which the spouse survives him, or

(b) in respect both of the period of their joint lives (subsequent to the retirement or marriage), and of the period, if any, for which the spouse survives him,

and the rules may provide that a pension payable thereunder in respect of the periods mentioned in paragraph (b) of this subsection shall be paid at one rate in respect of the first of those periods and at a higher rate in respect of the second.

(4) For the purposes of paragraph (b) of subsection (2) of section four of the principal Act (which imposes a limit on the

amount of a pension under that Act which a person in receipt of another Crown pension may receive) any part of a pension surrendered by a person in accordance with rules made under this section shall be treated as being received by him.

(5) Rules under this section shall be made by statutory instrument which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

Gratuity in case of death while serving as Governor.

7.—(1) The following provisions of this section shall have effect in substitution for the provisions of subsection (2) of section five of the principal Act and section four of the Pensions (Governors of Dominions, &c.) Act, 1929 (which relate to death gratuities).

(2) Where a Governor who, immediately before his appointment as a Governor, was serving in an office in the permanent Civil Service of the State, dies while he is a Governor, the Treasury may grant to his personal representatives out of moneys provided by Parliament a gratuity of such amount, not exceeding four thousand five hundred pounds, as is equal to the average yearly amount of his final salary.

(3) The Treasury may by order direct that the last foregoing subsection shall have effect as if for the reference to four thousand five hundred pounds there were substituted a reference to such other sum as may be specified in the order.

Calculation of yearly amount of commuted pension.

8. Where part of a pension granted under the principal Act or the whole or part of any other pension has been commuted by the payment of a capital sum, the yearly amount of the pension shall be taken, for the purposes of the Pensions (Governors of Dominions, &c.) Acts, 1911 to 1947 and this Act, to be what it would have been but for the commutation.

Further amendment of section six of principal Act.

9. The section substituted for section six of the principal Act by section five of the Pensions (Governors of Dominions, &c.) Act, 1929 (which provides for reducing the amount of a pension granted under the principal Act where the person to whom it has been granted receives any salary or emolument in respect of certain employment) shall have effect as if the employment specified therein included any employment under the Government of the United Kingdom or any oversea territory.

Application of Superannuation Acts to former Governors.

10.—(1) Where a person who has served as a Governor becomes employed in an established capacity in service in respect of which a pension may be granted under the Superannuation Acts, then, if he has not become entitled to a pension under the principal Act, his service as a Governor may for the purposes of the Superannuation Acts (including the Superannuation Act, 1949) be treated as if it had been service in respect of which a pension may be granted under those Acts.

(2) Where a person who has become entitled to a pension under the principal Act becomes employed in service in respect of which a superannuation allowance and additional allowance under the Superannuation Acts cannot, apart from this section, be granted to him but which is of a kind in respect of which such allowances are granted to persons retiring after the requisite number of years then, whether or not his employment was in an established capacity and notwithstanding that he has not completed the requisite number of years' service, a superannuation allowance and additional allowance may on his retirement be granted to him under those Acts but—

- (a) no more than five years of his service shall be taken into account in computing their amounts; and
- (b) where his service was less than three years their amounts shall be computed as if the whole of his service were the period specified in subsection (2) of section four of the Superannuation Act, 1935 (which requires such allowances to be computed on the average annual amount of salary and emoluments during the last three years of service); and
- (c) where his employment was in an established capacity Parts I and II of the Superannuation Act, 1949 (which make provision for pensions to widows and dependants and for the collection of contributions in respect of such pensions) shall nevertheless not apply to him.

(3) Allowances granted by virtue of the last foregoing subsection shall be left out of account for the purposes of subsection (2) of section four of the principal Act (which restricts the right to a pension under that Act of a person in receipt of another pension earned in the service of the Crown).

11. Section eight of the principal Act (which enables the Secretary of State to declare a person's claim to a pension under that Act forfeited for his failure to accept or perform the duties of a Governor) shall cease to have effect.

Abolition of duty to become or remain Governor.

12.—(1) In the Pensions (Governors of Dominions, &c.) Acts, 1911 to 1947 and this Act, the expression "Governor" shall include the Governor (however styled) of any federation or association of oversea territories.

Meaning of "Governor" and "service in the permanent Civil Service of the State".

(2) Subject to the next following subsection, the expression "service in the permanent Civil Service of the State" shall have the same meaning in the Pensions (Governors of Dominions, &c.) Acts, 1911 to 1947 as is assigned to it for the purposes of this Act by subsection (2) of section one of this Act.

(3) For the removal of doubt it is hereby declared that where under section two of the Pensions (Governors of Dominions, &c.) Act, 1929 any years served as Governor are to be treated as if they had been passed in service in the permanent Civil Service of the State, the service in which those years are to be treated as having been passed is service in respect of which a pension may be granted under the Superannuation Acts.

Orders.

13. Any order of the Treasury under this Act shall be made by statutory instrument, which shall be subject to annulment in pursuance of a resolution of the Commons House of Parliament, and may be varied or revoked by a subsequent order.

Application to certain pensions and gratuities granted before commencement of Act, saving and repeal.

14.—(1) The provisions of this Act shall apply in relation to pensions and gratuities granted before the commencement of this Act but after the thirty-first day of August, nineteen hundred and fifty-five, as well as to those granted after its commencement.

(2) Where the amount of a pension or gratuity granted to or in respect of a person who was serving as a Governor on the first day of September, nineteen hundred and fifty-five, would be less if computed under section three or, as the case may be, section seven of this Act than if computed under the enactments mentioned in those sections, it shall be computed in accordance with those enactments, notwithstanding their repeal by this Act.

(3) The enactments mentioned in the Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

Payment out of moneys provided by Parliament.

15. There shall be paid out of moneys provided by Parliament any increase attributable to the provisions of this Act in the sums which under the Pensions (Governors of Dominions, &c.) Acts, 1911 to 1947 or under the Superannuation Acts are payable out of moneys so provided.

Interpretation, etc.

16.—(1) In this Act,—

“final salary” means salary during the last three years of service (whether as a Governor or in the permanent Civil Service of the State);

“oversea territory” means a territory which is, or is part of, a colony, protectorate, protected state or trust territory;

“pensionable overseas service” means service in any office under the Government of any country which is, or was at the time of the service, an oversea territory or a mandated territory, being service qualifying for a pension payable out of public revenue, out of

any fund established by the Government of that country, or out of the fund formed under the Oversea Superannuation Scheme;

“salary”, in relation to service in the permanent Civil Service of the State, includes emoluments;

“the Superannuation Acts” means the Superannuation Acts, 1834 to 1950;

“trust territory” means a territory administered by Her Majesty's Government in the United Kingdom under the trusteeship system of the United Nations,

and references to the Government of an overseas territory include references to a Government constituted for two or more such territories and to any authority established for the purpose of providing or administering services which are common to, or relate to matters of common interest to, two or more such territories.

(2) References in this Act and the Pensions (Governors of Dominions, &c.) Acts, 1911 to 1947 to emoluments include only emoluments which are taken into account for the purposes of any pension other than a pension payable under the principal Act.

(3) This Act shall be included among the enactments which may be applied by Order in Council under subsection (4) of section three of the Palestine Act, 1948 (which enables service under the Government of Palestine during the mandate to be treated for superannuation purposes as continuing after the relinquishment of the mandate).

17. This Act may be cited as the *Governors' Pensions Act*, Short title, 1956, and shall be construed as one with the Pensions (Governors construction of Dominions, &c.) Acts, 1911 to 1947, except that the expression and citation. “colony” in this Act shall be construed with due regard to the date of its passing; and those Acts and this Act may be cited together as the *Governors' Pensions Acts*, 1911 to 1956.

Section 14.

SCHEDULE

ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
1 & 2 Geo. 5. c. 24.	The Pensions (Governors of Dominions, &c.) Act, 1911.	Section two; section five; section eight; in section twelve, in subsection (1) the definition of "service in the permanent Civil Service of the State".
19 & 20 Geo. 5. c. 16.	The Pensions (Governors of Dominions, &c.) Act, 1929.	Sections one, three, four and seven.
26 Geo. 5. & 1 Edw. 8. c. 25.	The Pensions (Governors of Dominions, &c.) Act, 1936.	In section one, in subsection (1), paragraph (a) and the words from "and accordingly" to the end of the subsection, and subsection (4); section two.
11 & 12 Geo. 6. c. 12.	The Pensions (Governors of Dominions, &c.) Act, 1947.	In section one, subsections (1), (3) and (4); sections two and three.

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Table of Statutes referred to in this Act

Short Title	Session and Chapter
Pensions (Governors of Dominions, &c.) Act, 1911.	1 & 2 Geo. 5. c. 24.
Pensions (Governors of Dominions, &c.) Act, 1929.	19 & 20 Geo. 5. c. 16.
Superannuation Act, 1935	25 & 26 Geo. 5. c. 23.
Pensions (Governors of Dominions, &c.) Act, 1936.	26 Geo. 5 & 1 Edw. 8. c. 25.
Pensions (Governors of Dominions, &c.) Act, 1947.	11 & 12 Geo. 6. c. 12.
Palestine Act, 1948	11 & 12 Geo. 6. c. 27.
Superannuation Act, 1949	12, 13 & 14 Geo. 6. c. 44.

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